

The Madurai City Municipal Corporation Service Rules, 1981

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State of Tamilnadu- Act

The Madurai City Municipal Corporation Service Rules, 1981

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The Madurai City Municipal Corporation Service Rules, 1981

Rule THE-MADURAI-CITY-MUNICIPAL-CORPORATION-SERVICE-RULES-1981 of 1981

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The Madurai City Municipal Corporation Service Rules, 1981

Published vide Notification G.O. MS. NO. 788, dated 2nd May 1981

In exercise of the powers conferred by sub-section (1) of section 431 read with subsection (1) of section 106 of the Madurai City Municipal Corporation Act, 1971 (Tamil Nadu Act

15 of 1971

), the Governor of Tamil Nadu hereby makes the following rules:-

Special Rules

Class II

Service

1.

Short title.

- These rules may be called for Madurai City Municipal Corporation Class II Service Rules 1981.

2.

Constitution.

- The service shall consist of the following categories of officers, namely:-

Category 1

Assistant Health Officer

Category 2(a)

Assistant Executive Engineer (W.S. & D)

Category 2(b)

Assistant Executive Engineer (General Purpose)

Category 2(c)

Assistant Executive Engineer (Automobile)

Category 2(d)

Assistant Executive Engineer (Electrical)

Category 3(a)

Manager

Category 3(b)

Assistant Accounts Officer

Category 3(c)

Assistant Revenue Officer

Category 3(d)

Chief Accountant (General Service)

Category 4

Assistant Educational Officer

Category 5

Assistant Town Planning Officer

Category 6

Chief Accountant including Additional Chief Accountant of

Electricity

3.

Appointment.

(a)

Appointment to the posts specified in Column (1) of the Table below shall be made by the methods specified in the corresponding entries in Column (2) thereof.

Category

Method of appointment

(1)

(2)

Category 1 - Assistant Health Officer

By direct recruitment; or by promotion from the category of class III of Madurai Corporation Public Health and Medical Service; or by deputation from the category of Assistant Health Officer in the Tamil Nadu Public Health Service.

Category 2(a) - Assistant Executive Engineer

Water supply and Drainage

By direct recruitment; or by promotion from the categories of Water Works and Drainage Superintendents in Class III of the said Service; or by deputation from the category of Assistant Executive Engineers, Tamilnadu Water Supply and Drainage Board.

Category 2(b) - Assistant Executive Engineer

(General purposes)

By promotion from the category of Senior Supervisor in Madurai Corporation Engineering and Waterworks Service; or by deputation from the category of Assistant Engineers, Public Service Departments.

Category 2(c) - Assistant Executive Engineer (Automobile)

By direct recruitment; or by deputation from the category of Assistant Engineer (Automobile) of State Service or from the Assistant Engineer of the Tamil Nadu Water Supply and Drainage Board.

Category 2(d) - Assistant Executive Engineer (Electrical)

By deputation from the category of Assistant Executive Engineer (Electrical) of the Electricity Board Service and by promotion from category 1 in Branch I of Class III Service in the ratio of 1:1

Category 3(a) - Manager.

By transfer from category 3(b) of Class II Service; or by promotion from categories 3(c) and 3(b) of Class II Service or by deputation from the category of Municipal Commissioner Grade II of the Tamilnadu Municipal Commissioners Service.

Category 3(b) - Assistant Accounts Officer

By transfer from the category 3(a); or by promotion from categories 3(c) and 3(d) or by deputation from the category of District Inspectors of Local Fund Accounts, Junior Accounts Officer, Sub-Treasury Officers and Accountants, Grade I of the Treasury and Accounts Subordinate Service, who have put in service for a period of not less than 5 years in their respective posts.

Category 3(c) - Assistant Revenue Officer

By the transfer from category 3(b); or by promotion from Branch I of Class III of General Service, or by deputation from the category of Municipal Commissioner, Grade II of the Tamil Nadu Municipal Commissioners Service.

Category 3(d) - Chief Accountant

By transfer from category 3(c); or by promotion from Branch I of Class III in General Service; or by deputation from the category of District Inspectors of Local Fund Accounts, Junior Accounts Officers, Sub-Treasury Officers and Accountants, Grade I of the Treasuries and Accounts Subordinate Service, who have put in service for a period of not less than 5 years in their respective posts.

Category 4 - Assistant Educational Officer

By promotion from category I of Branch I of Class III service or by deputation from Government Service on a similar scale of pay or by direct recruitment if suitable candidates are not available for promotion.

Category 5 - Assistant Town Planning Officer (Grade I)

By direct recruitment; or by promotion from Category I of Class III Service; or by deputation from the category of Town Planning Officer, Grade I in the Tamil Nadu Municipal Town Planning Service.

Category 6 - Chief Accountant including Additional Chief accountant of Electricity

By promotion from Branch I of Class III Service of Electricity General Service; or by appointment or deputation from the category of District Inspector of Local Fund Accounts, Junior Accounts Officers, Sub-Treasury Officers and Accounts Grade I of the Treasury Accounts Subordinate Service who have put in not less than 5 years of service in their respective posts.

(b)

The Employment Exchange should be consulted in the first instance for all direct recruitment and recruitment by advertisement should be resorted to only after obtaining a non-availability certificate from the Employment Exchange.

4.

Appointing Authority.

- The appointing authority in respect of all the categories in this service shall be the Council and shall be subject to the confirmation by Government.

5.

Qualification.

- No person shall be eligible for appointment to any of the posts specified in Column (1) of the Table below by the method specified in the corresponding entries in Column (2) unless he possesses the qualifications specified in the corresponding entries in Column (3) thereof.

Category

Method of Appointment

Qualifications

1

2

3

Category 1 - Assistant Health Officer

By direct recruitment

(a) B. S. Sc. Degree or the Diploma in Public Health of the University of Calcutta or any equivalent degree or diploma of any University or institutions, or

(b) A certificate of having undergone a special course of training in Sanitary Science in the Medical College, Chennai, for a period of not less than one year and of having passed the examination for Licentiate in Public Health held at the end of the course:

Provided that preference shall be given to candidates who possess the qualifications specified in item (a.)

Provided further that if fully qualified candidates are not available for appointment, candidates possessing the M.B.B.S. Degree of any University or institutions or candidates possessing the Diploma of L.M.P. granted by the Board of Examiners, Medical College, Chennai may be appointed to the said category, subject to the following conditions namely:

(i) Such candidates should undergo orientation course in Public Health for a period of three months before they

are appointed as Assistant Health Officers. During the period they undergo the orientation course, they will be paid the minimum in the time scale of pay of Assistant Health Officers and dearness allowance admissible under the rules.

(ii) The candidates should acquire the Public Health Qualification within a period of four years from the date of their appointment.

(iii) During the period they undergo the course for acquiring the Public Health Qualification, the candidates possessing the M.B.B.S. Degree will be allowed to draw Rs. 300 and Diploma holders of Rs. 250 as allowance and appropriate dearness allowances. All ration fees due to the Government from the candidates will be borne by the Corporation.

(iv) The period of course of training for acquiring the Public Health Qualifications will be allowed to count for purpose of increment and pension of the candidates concerned. Such period shall not count for purposes of probations.

(v) Before the candidates join the Medical College undergoing the course for acquiring the Public Health qualification, the candidates should execute a bond undertaking to serve the Corporation of Madurai for a minimum period of ten years.

(vi) They shall not be deemed to have satisfactorily completed their probation and shall not be entitled to appointment as full members until they acquire the said qualification. If they fail to acquire the said qualification within the said period of four years, the appointing authority shall, forthwith by order, terminate their probation and discharge them from service.

By promotion and by deputation

(a) B.S.Sc. Degree or the Diploma in Public Health of the University of Calcutta or any equivalent degree or Diploma of any University or institution; and

(b) A pass in the Accounts Test for Executive Officers

Category 2(a) - Assistant Executive Engineer
(Water Supply and Drainage)

By direct recruitment

Must possess the B.E. Degree (Civil or Mechanical) of any University or Institution recognised by the University Grants Commission for purposes of its grant.

Category 2(a) - Assistant Executive Engineer
(Water Supply & Drainage)

By promotion and by deputation

(a) B.E Degree (Civil or Mechanical) of any University or Institution recognised by the University Grants Commission for purpose of its grant or any other qualification considered equivalent there to,,

Category 2(b) - Assistant Executive Engineer
(General Purposes)

By promotion and by deputation

Must have served as Junior Engineer or Supervisor in the Corporation Engineering Subordinate Service, Municipal Engineer Grade III, Junior Engineer or Supervisor (Public Health) for a period of not less than five years on duty; or

(ii) Municipal Engineer Grade 11 or Assistant Executive Engineer (Public Health); or Category 2(c) - Assistant Executive Engineer (Automobile)

By direct recruitment or by promotion or by deputation.

(iii) Diploma in Civil or Mechanical Engineering of the State Board of Technical Education and Training or any other qualification considered equivalent thereto: Provided that Municipal Engineer, Grade III or Supervisor (Public Health) possessing the qualifications referred to in item (iii) above shall be eligible for appointment as Assistant Executive Engineer only if they have put in a total service of not less than 10 years in one or more categories or as Municipal Engineer, Grade III or as Supervisor (Public Health), and

(b) A pass in the Account Test for Public Works Department Officers and Subordinates.

Must hold B.E. Degree (Mechanical) of any University or Institution recognised by the University Grants Commission for purposes of its grants, and practical experience in an automobile workshop or stores for a period of not less than five years:

Provided that if a fully qualified candidate is not available for recruitment to the post of Assistant Executive Engineer, a candidate who does not possess such practical experience may be appointed and the candidate so appointed shall undergo training in the workshop or stores of the Tamil Nadu State Transport Department for a minimum period of one year. During such training, he shall be paid a monthly pay of Rs. 300. The period of training will count towards promotion.

Category 2(d) - Assistant Executive Engineer (Electrical)

By promotion and by deputation

(1) (a) A degree in Electrical Engineering of any University or Institution recognised by the University Grants Commission for purposes of its grants or any other qualification considered equivalent thereto and in the case of promotion, service as Supervisor in the Corporation Subordinate Service for a period of not less than five years, or

(b) Diploma in Electrical Engineering of the State Board of Technical Education and Training or any other qualifications considered equivalent thereto and a minimum period of service and experience of 15 years, or

(c) Subject to the condition specified below a

pass in Section A and B of the A.M.I.E. (India) Examination with Electrical Engineering (General) and any two of the following subjects under section B as optional or additional subjects, namely:-

- (i) Electric Supply and Power Distribution;
- (ii) Electrical Machinery;
- (iii) Electrical Installation;
- (iv) Electrical measurements,,
- (v) Thermo dynamics and Heat Engines (Steam and Internal Combustion);
- (vi) Hydro Electricity; and
- (vii) Hydraulics or Hydraulic Machinery.

Category 2(d) - Assistant Executive Engineer
(Electrical)

By Deputation and by promotion

(A) Should furnish evidence of having undergone practical training in "Surveying" for at least one year or hold the Upper Subordinate or L.C.E. Diploma of the College of Engineering, Guindy or any other qualification recognised as equivalent thereto;

(B) Should have secured a pass in the Intermediate Examination of any University or Institution recognised by the University Grants Commission for purposes of its grant or an examination recognised by the Government as equivalent thereto; and

Should have had practical experience for a period of not less than 6 years which should include at least 4 years practical experience after passing section A and B of the A.M.I.E. (India) Examination; and

(2) A pass in the Account Test for Public Works Department Officers and Subordinates.

Category 3(a) to 3(d) Manager, Assistant Accounts Officer, Assistant Revenue Officer and Chief Accountant
Category 4 Assistant Education Officer

By promotion and by deputation

Must possess a Degree and pass in the Account Test for Subordinate Officers, Parts I and II or Account Test for Local Bodies Employees or Panchayat Development Account Test.

(a) B.A., B.Com., or B.Sc. Degree of an University recognised by the University Grants Commission for the purpose of its grant, and B.T. Degree of an University recognised by the University Grants Commission for the purpose of its grant.

Must possess B. Arch Degree of any University recognised by the University Grant Commission for the purpose of its grant or Diploma in Architecture, or

(b) Associate of Indian Institute of Architects,
or

(c) a Degree in Civil Engineering of any University recognised by the University Grants Commission for the purpose of its grant; or

(d) Must possess the Post-Licentiate Diploma in

Town and Country Planning awarded by the Board of Technical Education, Government of Tamil Nadu.

By promotion and by deputation

Permanent or approved probationer in Category I

of Class III Service, and (b) Must possess L.C.E. Diploma in Civil Engineering issued by the Board of Technical Education, Government of Tamil Nadu or any qualification recognised as equivalent thereto by the Government of Tamil Nadu.

6.

Age.

- No person shall be eligible for appointment by direct recruitment to the posts specified in Column (1) of the Table below unless he has not completed or will not complete the age specified in Column (2) thereof on the 1st day of July of the year in which selection for appointment is made.

Category

Age

(1)

(2)

1

35 years.

2(a), 2(c)

30 years.

4

30 years.

5

30 years.

Provided that in the case of candidate possessing the Post-Graduate Degree in Engineering from any Indian University for appointment by direct recruitment to category 2(a), the age limit shall be increased by two years:

Provided further that a candidate belonging to Scheduled Castes or the Scheduled Tribes shall be eligible for appointment by direct recruitment to categories 2, 4 and 5, if he will not complete the age of 31 years on the said date.

7.

Probation.

- A person appointed to the service by direct recruitment shall, from the date on which he joins duty, be on probation for a total period of two years on duty within a continuous period of three years.

8.

Test.

(1)

Every person who are recruited directly and are probationers in the post of Assistant Health Officer shall, within the period of their probation, pass the Account Test for Executive Officers. If a probationer in the post of Assistant Health Officer fails to pass the above test he shall not be deemed to have completed his probation satisfactorily and shall not be entitled to appointment as full member or to increments in the time scale of pay applicable to him unless and until he passes the said test. But, such ineligibility for increments shall not operate to postpone the future increments after he passes the said test. If such probationer does not pass the said test within a period of four years from the date of his appointment, he shall be discharged from the service.

(2)

Every person who are recruited directly as Assistant Executive Engineers shall pass the Account Test for Public Works Department Officers and Subordinates within four years from the date of appointment.

The penalty for failure to pass the test is stoppage of his increments, but the stoppage will not operate to postpone further increments after they pass the test.

9.

Inter changeability of certain posts.

(a)

The post of Manager category 3(a) and Assistant Account Officer (Category 3 (b) are interchangeable. Likewise, the posts of Assistant Revenue Officers (Category 3(c) and Chief Accountant Category 3(d) are interchangeable.

(b)

Promotion Category 3(a) and category 3(b) shall be from the category 3(c) and category 3(d). Common seniority shall be maintained between the categories 3(a) and 3(b). Likewise, common seniority shall be maintained between the categories 3(c) and 3(d):

Provided that in case of category 3(a) falling vacant, it shall be filled up by transfer from category 3 (b) so long as the former carries the monetary advantage like special pay and so long as the latter is willing to be appointed to the former post. Otherwise, it may be filled up by promotion from categories 3(c) and 3(d) of the service:

Provided that the interchange of the categories 3(a) and 3(b) shall not be made to the monetary disadvantage of the former against his will so long as that post carries special pay.

10.

Savings.

- Nothing contained in these rules shall adversely affect any person holding any of the posts referred to in these rules on the date of coming into force of these rules.

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